

GENERAL TERMS

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement:

Accepted or **Acceptance** as used below refers to compliance with the terms of the agreement and the performance of this statement of work outlined in Schedule 1.

Affiliate of a party means any person that controls or is controlled by that party, or is under common control with that party.

Agreement means this *Subcontractor Agreement*, including the Contract Details, these General Terms (as may be varied in the Contract Details) and any Schedules.

Background IP of a party means intellectual property, information, materials and other items of that party (or its licensors) existing prior to the date of this Agreement or developed independently of this Agreement and includes the specific Background IP of that party identified in the Contract Details (if any).

Business Day means:

- (a) in clause 19.3, a day of the week, excluding Saturdays, Sundays and public holidays observed in the location of the intended recipient; or
- (b) in any other case, a day of the week, excluding Saturdays, Sundays and public holidays observed in Auckland, New Zealand.

Confidential Information. Neither Party anticipates the exchange of Confidential Information during their performance of this Agreement. However, should any such exchange take place, the following shall apply: "Confidential Information" shall mean all information clearly marked as "Confidential", regardless of its nature, in both tangible and intangible form (e.g., orally or visually disclosed), provided that oral or visual disclosures are reduced to writing within thirty (30) days of disclosure, but excludes information to the extent it:

- (c) is or becomes public knowledge, other than as a result of any fault of the Recipient or its permitted disclosees;
- (d) is developed independently of this Agreement and any information of the Disclosing Party; or
- (e) is received by the Recipient from a third party without restriction and without any breach of any obligation of confidentiality.

Contract Details means the agreement-specific details set out at the front of this Agreement.

End Date means the end date set out in the Contract Details.

Export Controls has the meaning given in clause 13.2.

Fees means the fees and expenses (if any) set out in Schedule 2.

Force Majeure Event means an event beyond the reasonable control of a party.

Funder means the funder set out in the Contract Details.

Funder Agreement means the agreement between the University and the Funder for the delivery of the Research Project.

GST means Goods and Services Tax as defined in the Goods and Services Tax Act 1985 or any goods and services, value added, sales or equivalent tax in any relevant jurisdiction.

Insolvency Event means, in relation to a party, that the party (other than for the purposes of a solvent restructuring) ceases or threatens to cease to carry on business, or (where the party is the Subcontractor) is subject to any form of insolvency proceedings, commits an act of bankruptcy or has been adjudicated bankrupt, has any of its assets seized by a creditor, enters into any arrangement for the benefit of its creditors, has a receiver, liquidator, administrator, statutory manager or similar official appointed, becomes insolvent or is deemed by law to be so, or suffers any analogous event under the laws of any relevant jurisdiction.

Intellectual Property Rights means any and all rights to and interests in or protecting (anywhere in the world) any industrial or intellectual property of any kind, whether or not in a material form, including copyright, trade marks, design rights, patents (or similar), all rights relating to know-how, confidential information, names, brands, inventions, discoveries, works, data, databases, designs, circuit layouts,

any right to apply for registration of any such rights, any right to claim priority under international convention for any such applications and all rights conferred by such applications or registrations.

Key Personnel means the personnel so named in the Contract Details, as may be updated from time to time in accordance with clause 5.2.

Principal Investigator means the person so named in the Contract Details.

Requirements means the requirements for the Services set out in Schedule 1, and as otherwise reasonably required by the University from time to time.

Research Project means the research project described in the Contract Details.

Results means all data, information, research findings, discoveries, deliverables, reports and other results arising from the performance of the Services.

Services mean the services described in the Contract Details.

Start Date means the start date set out in the Contract Details.

Subcontractor Investigator means the person so named in the Contract Details, as may be updated from time to time in accordance with clause 5.2.

University Input means the materials, resources and other items set out in the Contract Details (if any).

1.2 In this Agreement:

- (a) clause and other headings are for ease of reference only and do not affect its interpretation;
- (b) unless the context requires otherwise, the singular includes the plural and vice versa;
- (c) references to legislation include all subordinate legislation, any amendment to, and all legislation passed in substitution for that legislation;
- (d) references to a **party** includes that party's successors and permitted assigns;
- (e) references to a party's **personnel** include its employees, agents, and contractors acting in relation to this Agreement;
- (f) all monetary amounts are in New Zealand dollars unless stated otherwise; and
- (g) **including** and like terms mean **including, without limitation**.

2. TERM

- 2.1 This Agreement is effective on the Start Date and ends on the End Date, unless terminated earlier in accordance with its terms.

3. APPOINTMENT AND SERVICES

- 3.1 Each party acknowledges that the engagement under this Agreement is on a non-exclusive basis.
- 3.2 In providing the Services and performing its other obligations under this Agreement, the Subcontractor must:
- (a) exercise all due care, diligence and skill;
 - (b) conform to the highest standards reasonably expected of professional persons providing services of the type described in this Agreement;
 - (c) meet required timeframes;
 - (d) comply with all reasonable directions given by the University in relation to the Services.
 - (e) comply with:
 - (i) all applicable laws and regulatory (including ethics) requirements; and
 - (ii) all relevant policies of the University, as advised to the Subcontractor from time to time reasonably in advance;
 - (f) ensure that the Services meet the Requirements;
 - (g) subject to clause 11 provide the University with all Results as they become available;

- (h) except for any University Input, provide all personnel, facilities, information, materials and other items required by it to provide the Services and perform its other obligations under this Agreement;
- (i) ensure it has all necessary consents, permissions and approvals to provide the Services and Results for use as contemplated by this Agreement;
- (j) comply with any applicable terms and conditions for any third party tools supplied by the University;
- (k) promptly notify the University on becoming aware of an issue that might reasonably be expected to adversely impact the delivery of the Services in accordance with this Agreement; and
- (l) do all things reasonably required to co-ordinate the provision of the Services with the provision of goods and/or services by other persons engaged by the University in connection with the Research Project and not do anything that may unreasonably impede the provision of those other goods and/or services.

3.3 The Subcontractor must use the Fees only to carry out the Services in accordance with this Agreement.

3.4 The University will provide the Subcontractor with the University Input by any stated dates set out in the Contract Details and all information and other assistance reasonably required to enable the Subcontractor to carry out the Services.

3.5 The Subcontractor must provide the University with progress reports (if any) at the frequency and/or times set out in Schedule 1 and other reasonably requested reports on the progress of the Services.

3.6 Each party will ensure that its designated personnel attend meetings (if any) at the times set out in Schedule 1.

3.7 The Subcontractor is responsible for the acts and omissions of its subcontractors as if they were the acts and omissions of the Subcontractor.

4. CONFLICT OF INTEREST

4.1 As at the Start Date the Subcontractor certifies it has no actual or potential conflicts of interest related to this Agreement.

4.2 During the term of this Agreement, the Subcontractor will promptly advise the University of any actual or potential conflicts of interest related to this Agreement.

4.3 The Subcontractor will follow any mitigation plan reasonably required by the University to manage any conflicts of interest related to this Agreement.

4.4 The University may terminate this Agreement immediately on notice if it reasonably considers a Subcontractor's conflict of interest:

- (a) has a material adverse impact on the Subcontractor's ability to provide the Services or the University's other legitimate interests; and

- (b) cannot be sufficiently mitigated or managed.

4.5 Either party may terminate this Agreement immediately on notice to the other party where the parties cannot agree a mitigation plan under clause 4.3.

5. KEY PERSONNEL

5.1 The Subcontractor must:

- (a) ensure that the Services are at all times carried out under the direction and supervision of the Subcontractor Investigator; and

- (b) perform the Services using the Key Personnel for the roles stated in the Contract Details.

5.2 The Subcontractor must notify the University of any changes in the level of active involvement of any of the Key Personnel in carrying out the Services, including any temporary absences. If any member of the Key Personnel is, or is likely to become, unavailable to provide the Services, the Subcontractor will notify the University as soon as practicable and discuss in good faith a replacement or other appropriate steps to take.

5.3 The University may terminate this Agreement on notice to the Subcontractor if the parties fail to agree a replacement or other appropriate steps, within 30 days of the University's receipt of the Subcontractor's notice under clause 5.2.

6. ACCEPTANCE

- 6.1 The Subcontractor acknowledges that under the Funder Agreement all results provided under the Funder Agreement need to be accepted by the Funder.
- 6.2 Where all or any part of the Results must be accepted by the Funder as part of the Research Project:
- (a) those Results will not be treated as complete until accepted by the Funder;
 - (b) the Subcontractor must provide all reasonable assistance requested by the University for the purpose of obtaining the Funder's acceptance including re-performing at its cost the relevant Services to the requirements of the Funder; and
 - (c) the University will act promptly and reasonably to the extent that the requirements and responsiveness of the Funder permit.

7. HEALTH AND SAFETY

- 7.1 Each party, where applicable, must comply with its obligations under the Health and Safety at Work Act 2015 (**HSW Act**).
- 7.2 If a party (**first party**) is or will be on the other party's (**Site party's**) premises or controlled site (**Site**) in relation to the Services:
- (a) each party will consult, cooperate and coordinate with the other party on:
 - (i) the parties' mutual obligations under the HSW Act; and
 - (ii) what is reasonably required of each party and its personnel to assist the other party with its HSW Act compliance;
 - (b) the Site party will provide in advance a Site induction and safety briefing to the first party's personnel and copies of the health and safety policies and management plan for the Site;
 - (c) each party will ensure its personnel follow the Site party's health and safety policies and management plan and any other reasonable safe working directions, and wear any specified safety gear while on the Site;
 - (d) each party will notify the other party as soon as possible of any health and safety hazards, issues, Notifiable Events (within the meaning of the HSW Act or other applicable legislation), and any contact by any regulatory agency in relation to any health, safety or environmental matter relating to this Agreement or any Services.

8. FEES AND PAYMENT

- 8.1 Subject to clause 8.3, the University must pay the Subcontractor the Fees for Services properly provided in accordance with this Agreement as set out in Schedule 2 and this clause 8.
- 8.2 Unless stated otherwise in Schedule 2, the Fees:
- (a) exclude GST, which the University must pay in addition to the Fees where applicable; and
 - (b) include all costs, expenses and disbursements incurred by the Subcontractor in providing the Services.
- 8.3 The Subcontractor must invoice the University on or after the dates set out in Schedule 2 or, if none are stated, monthly for Services provided in the previous month. Each invoice must:
- (a) be a valid invoice; and
 - (b) include sufficient identifying details of the Services (including deliverables or milestones) to which the invoice relates and the dates of supply or any other information reasonably requested by the University.
- 8.4 The Subcontractor must keep accurate and up-to-date financial records and documents of time and resources used in providing the Services, and provide copies of all such records to the University on request.

9. TAXATION

- 9.1 The Subcontractor is solely responsible for any duties, levies, ACC, GST and taxation in connection with the Fees, including other payments which may be payable in respect of the payments or benefits provided by the University under this Agreement.

- 9.2 The University will make no deduction on account of tax and any other imposition except that which the University is required by law to make. To avoid doubt, the Subcontractor acknowledges that where the Services are of a type covered by Schedule 4 of the Income Tax Act 2007 the University may deduct tax from the Fees at the applicable rate(s) prescribed in that Schedule 4. The University may decide, in its sole discretion, whether or not the Services are of a type covered by that Schedule 4.
- 9.3 The Subcontractor will indemnify and keep indemnified the University for the payment of taxes, fees, duties, levies, penalties or other charges whatsoever imposed on the University or the Subcontractor by any governmental authority arising out of or in relation to this Agreement.
- 9.4 In the event that the New Zealand Inland Revenue Department makes a request in writing to the University to pay, deduct or withhold any tax in respect of payments made under this Agreement after such payments have been paid to the Subcontractor, the Subcontractor agrees to refund to the University that amount of tax within 14 Business Days of the University notifying the Subcontractor of the written request.

10. CONFIDENTIALITY

- 10.1 Neither Party anticipates the exchange of Confidential Information during their performance of this Agreement. Each party must keep Confidential Information of the other party secure and confidential and, except with the prior consent of the other party, not:
- (a) use it for any purpose other than as required to perform its obligations or exercise its rights under this Agreement; or
 - (b) disclose it to any person other than:
 - (i) as permitted under this Agreement;
 - (ii) to its or its Affiliates' personnel who have a need-to-know to give effect to this Agreement, or to its professional advisors, provided that the recipient is under obligations of confidentiality equivalent to those in this clause 10; or
 - (iii) in the case of the University, to the Funder to the extent reasonably required to give effect to the Funder Agreement, provided that the Funder is under obligations of confidentiality equivalent to those in this clause 10.
- 10.2 The obligations of confidentiality do not apply to the extent any information that it is required to be disclosed by law (including under the rules of any recognised stock exchange).
- 10.3 Neither party may use the names, logos or trade marks of the other party, its Affiliates or their personnel without the other party's prior written consent.
- 10.4 The Subcontractor acknowledges that the University:
- (a) is subject to the Official Information Act 1982 which recognises a right of the public to access official information; and
 - (b) may disclose the following, in accordance with that Act, without further consultation with the Subcontractor:
 - (i) the name of the Subcontractor;
 - (ii) the subject matter of this Agreement (e.g. that the Subcontractor provided services related to a named research project); and
 - (iii) Fees paid or payable under this Agreement either in total or for a given period

11. INTELLECTUAL PROPERTY

- 11.1 Each party (or its licensors) retains ownership of all rights, title and interest (including Intellectual Property Rights) in its Background IP.
- 11.2 Subject to clause 11.1, ownership of the Results vests automatically on creation in the parties (or their assignees) jointly as tenants in common in proportions relative to each party's respective contribution to the Project
- 11.3 Each party grants the other party a non-exclusive, royalty-free, perpetual and irrevocable licence to use, and to permit its personnel to use, the Results (including any Intellectual Property Rights subsisting in the Results) for the purposes of that party's internal teaching and academic research.

- 11.4 Except as expressly provided otherwise in this Agreement, a party must not commercially exploit or otherwise use the Results (including Intellectual Property Rights subsisting in the Results) without the written consent of the other party.
- 11.5 The parties will discuss and agree each party's responsibilities and proportionate costs of any patent applications in relation to jointly owned Results, prior to submitting any such application.
- 11.6 Each party will, at the other party's cost, provide reasonable information and assistance and do or procure any further acts, including the execution of any document, where necessary to give effect to clauses 11.1 and 11.2.
- 11.7 Each party grants the other party a non-exclusive, royalty-free worldwide licence to use its Background IP that it has contributed to the Research as reasonably required by the other party to carry out the Research in accordance with this Agreement.
- 11.8 Except as expressly provided otherwise, this Agreement does not grant any licence or other rights to a party to use the other party's Background IP.

12. CERTIFICATIONS

- 12.1 Each party certifies that it has full power and authority to enter into and perform its obligations under this Agreement.
- 12.2 To the extent permitted by law, each party's certifications are limited to those expressly set out in this Agreement and all implied conditions (including any under Part 3 of the Contract and Commercial Law Act 2017) are excluded.

13. SANCTIONS AND IMPORT/EXPORT CONTROLS

- 13.1 Each party certifies that it is not subject to any United Nations' or other sanctions that would prohibit a party from entering into or performing this Agreement.
- 13.2 The parties acknowledge that export controls may require permission from a government or other regulatory agency in the location of a party to enable the transfer of information, materials or other items from one party to the other party or the Funder (as the case may be) (**Export Controls**).
- 13.3 Each party:
 - (a) will use reasonable efforts to obtain in a timely manner (and may disclose Confidential Information of the other party strictly for the purposes of) any required permissions under Export Controls to give effect to this Agreement; but
 - (b) excludes all representations and warranties that any required permissions will be obtained or will be obtained within an acceptable timeframe or only on conditions acceptable to a party.
- 13.4 A party must promptly provide all information requested by the other party or a relevant government or other regulatory agency relating to sanctions, sensitive research or Export Controls, including:
 - (a) any end-user certificate or similar undertaking; and
 - (b) any information requested for the purposes of any special terms included in the Contract Details.
- 13.5 A party bears all risk and responsibility for obtaining any required permissions from a government or other regulatory agency in its location to enable it to import information, materials or other items from the other party under this Agreement (**Import Controls**). Each party will provide to the other party or a government or other regulatory agency in the other party's location reasonable information requested in relation to Import Controls.
- 13.6 Subject to its compliance with this clause 13 and any related special terms in the Contract Details, each party excludes all liability for any inability to give effect to this Agreement as a result of compliance with sanctions, sensitive research, Export Controls or Import Controls (including any decision or delay in decision-making by any relevant government or other regulatory agency).

14. INDEMNITY

- 14.1 Not used.

15. LIABILITY

- 15.1 The maximum aggregate liability of each party to the other party under or in relation to this Agreement is limited to an amount equal to 3x the total amount of Fees payable by the University to the Subcontractor under this Agreement.

- 15.2 Neither party will be liable to the other party under or in relation to this Agreement for any consequential, indirect, incidental or special damage or loss of any kind.
- 15.3 Clauses 15.1 and 15.2 do not apply to limit any liability for:
- (a) fraud or wilful misconduct.
- 15.4 Each party must maintain adequate public liability and professional indemnity insurance sufficient to cover its risks under this Agreement, for the term of this Agreement and a period of two years following its expiry or termination.

16. TERMINATION

- 16.1 Either party may terminate this Agreement on 14 days' notice if any dependency stated in the Contract Details fails to be satisfied by the stated date or having been satisfied then fails.
- 16.2 A party (**first party**) may terminate this Agreement immediately on notice to the other party if:
- (a) the other party commits a material breach of this Agreement and either the breach is incapable of remedy or the other party fails to remedy that breach within 14 days of the first party notifying it of the breach;
 - (b) the other party is subject to an Insolvency Event; or
 - (c) subject to the first party's compliance with clause 13 and any related special terms in the Contract Details, either party is unable reasonably to give effect to this Agreement as a result of compliance with sanctions, sensitive research, Export Controls or Import Controls.
- 16.3 The University may terminate this Agreement immediately on notice to the Subcontractor, if the Subcontractor has:
- (a) misused or misappropriated any Fees; or
 - (b) given any information, representation, or statement to the University in relation to the Services or this Agreement that is misleading or inaccurate in any material respect.
- 16.4 Termination or expiry of this Agreement does not affect a party's rights or obligations that have accrued before termination or expiry.
- 16.5 On termination or expiry of this Agreement:
- (a) The University may (without limiting any of its other rights or remedies):
 - (i) require the Subcontractor to return all Fees not spent or for which contractual liabilities have not been incurred by the Subcontractor at the date of termination; or
 - (ii) if terminated under clauses 16.2(a) or 16.3, require the Subcontractor to return all Fees paid up to the date of termination, together with interest at the University's overdraft rate applicable as at the termination date plus 2% per annum, and compounded monthly, from the termination date to the date returned;
 - (b) clauses 8, 9, 10, 11, 13.6, 14, 15, 16.4, 16.5, 18, 19.8 and any other clauses intended to survive termination or expiry, continue in force; and
 - (c) each party, on request, must promptly return to the other all documents, materials and other items belonging to the other party and in its possession or control at the time of termination or expiry.

17. FORCE MAJEURE

- 17.1 A party will not be liable for any failure or delay in the performance of its obligations under this Agreement to the extent such failure or delay is due to a Force Majeure Event.

18. DISPUTES

- 18.1 Each party must use all reasonable efforts to meet and discuss in good faith any dispute arising in relation to this Agreement. A party must not issue any legal proceedings (other than for urgent interlocutory and/or injunctive relief) in respect of any dispute in connection with this Agreement, unless it has complied with this clause 18.
- 18.2 In the event of a dispute as to any amount payable to the Subcontractor, the University must continue to pay any undisputed portion of any invoice.

19. GENERAL

- 19.1 **Governing law and jurisdiction:** This Agreement is governed by and interpreted in accordance with the laws of New Zealand. The parties submit to the non-exclusive jurisdiction of the courts of England.
- 19.2 **Assignment:** This Agreement must not be assigned, subcontracted or otherwise delegated by a party (in whole or in part) without the prior written consent of the other party.
- 19.3 **Notices:** Any notice given under this Agreement must be in writing and may be delivered in person (including courier), by prepaid post or email (provided that in the case of email the sender does not receive any notice of non-delivery) to that party's address in the Contract Details (or as may be updated by that party by notice from time to time). Any notice sent by prepaid post is deemed received 2 Business Days from the date of posting (or 7 Business Days from the date of posting if sent to or from a place outside New Zealand). Any notice delivered in person or by email on a non-Business Day or after 5pm on a Business Day is deemed received on the next Business Day.
- 19.4 **Cumulative remedies:** The rights and remedies of each party under this Agreement are cumulative and are not exclusive of any other rights and remedies under this Agreement or at law.
- 19.5 **Waiver and variation:** No waiver of any right under this Agreement is effective unless in writing and signed by the waiving party. Except as expressly set out otherwise in this Agreement, no variation to this Agreement (including a material variation to the Requirements) is effective unless in writing and signed by each party.
- 19.6 **Parties' relationship:** The parties are independent contracting parties and no other relationship (e.g. employment) arises between them under this Agreement. Neither party is authorised to act as agent for or to bind the other party for any purpose and must not make any contrary representation to any person.
- 19.7 **Severability:** If any provision of this Agreement is or becomes invalid or unenforceable, the provision is deemed to be modified to the extent required to remedy the invalidity or unenforceability. If such modification is not possible, the provision is deemed to be severed and will not affect the validity or enforceability of the other provisions of this Agreement.
- 19.8 **Entire agreement:** To the extent permitted by law, each party acknowledges and agrees that:
- (a) this Agreement sets out the entire understanding between the parties and supersedes any prior oral or written agreement or understanding between the parties relating to its subject matter; and
 - (b) no representations made by the other party have been relied on by it in entering into this Agreement, other than those expressly set out in this Agreement.
- 19.9 **Counterparts:** This Agreement may be executed in 2 or more counterparts, each of which is deemed an original and all of which constitute the same Agreement. A party may enter this Agreement by signing (including electronically) and sending (including by email) a counterpart copy to the other party.